

# **CV-23-001643 EDVALSON, ERIC, III VS CITY OF MODESTO – Defendant City of Modesto’s Motion for Summary Judgment – DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: As a preliminary matter Plaintiff’s timing concerns regarding the original hearing date of this motion have been addressed by the continuance of the motion. Additionally, Defendant’s objections to Plaintiff’s Amended Separate Statement are overruled. While the court did not expressly grant Plaintiff leave to file a supplementary separate statement since the court granted Plaintiff leave to conduct the PMK deposition for purposes of being able to mount his defense to the Motion for Summary Judgment and given the importance of a separate statement as far as the Motion for Summary Judgment is concerned, it would be reasonably anticipated that Plaintiff would use the information obtained from said deposition including by the filing of an Amended Separate Statement. Defendant’s Request for Judicial Notice is granted, limited to the existence of the requested Exhibits. Evidence Code §452. Plaintiff’s Request for Judicial Notice is granted pursuant to Evidence Code §§ 452 and 453. After a review of all the testimony and evidence adduced, the Court finds that triable issues of material fact exist as to the applicable Statute of Limitations to Plaintiff’s claims. The May 12, 2022, correspondence lists only “City of Modesto Risk Management Division,” lacks an individual signature, and was served with a proof of service signed by a third-party employee in Bakersfield; raising a triable issue as to whether this constitutes written notice “of action taken” given “in the manner prescribed by Government Code § 915.4” from an authorized source. This is a triable issue impacting the Government Code § 913 predicate compliance. (Defendant’s UMFs 1-9, Defendant’s Exhibit 2, Plaintiff’s Amended Additional UMFs 10-31, Plaintiff’s Exhibit C, Braley Deposition pp. 5-6, 8-9,12-17,19, 20-22 and 24-25). A triable issue of material fact exists as to the authority underlying Defendant’s alleged Government Code §913 predicate compliance based on Defendant’s inability to conclusively identify the City employee who rejected the claim or directed issuance of the May 12, 2022, notice; or to identify a decisionmaker or to identify any City Council resolution or written delegation to Risk Management. These unresolved facts determine whether the six-month provision under Government Code §945.6(a)(1) was triggered by a Government Code § 913-compliant notice or whether the two-year period under § 945.6(a)(2) applies, making them outcome-determinative and precluding summary adjudication on Defendant’s Statute of Limitations defense. Code of Civil Procedure § 437c; Aguilar v Atlantic Richfield Co. (2001) 25 Cal.4th 826. Accordingly, Defendant’s Motion for Summary Judgment is denied.

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Additionally, Defendant’s objections to Plaintiff’s Amended Separate Statement are overruled. While the court did not expressly grant Plaintiff leave to file a supplementary separate statement since the court granted Plaintiff leave to conduct the PMK deposition for purposes of being able to mount his defense to the Motion for Summary Judgment and given the importance of a separate statement as far as the Motion for Summary Judgment is concerned, it would be reasonably anticipated that Plaintiff would use the information obtained from said deposition including by the filing of an Amended Separate Statement.

Defendant’s Request for Judicial Notice is granted, limited to the existence of the requested Exhibits. Evidence Code §452. Plaintiff’s Request for Judicial Notice is granted pursuant to Evidence Code §§ 452 and 453.

After a review of all the testimony and evidence adduced, the Court finds that triable issues of material fact exist as to the applicable Statute of Limitations to Plaintiff's claims.

The May 12, 2022, correspondence lists only "City of Modesto Risk Management Division," lacks an individual signature, and was served with a proof of service signed by a third-party employee in Bakersfield; raising a triable issue as to whether this constitutes written notice "of action taken" given "in the manner prescribed by Government Code § 915.4" from an authorized source. This is a triable issue impacting the Government Code § 913 predicate compliance. (Defendant's UMFs 1-9, Defendant's Exhibit 2, Plaintiff's Amended Additional UMFs 10-31, Plaintiff's Exhibit C, Braley Deposition pp. 5-6, 8-9, 12-17, 19, 20-22 and 24-25).

A triable issue of material fact exists as to the authority underlying Defendant's alleged Government Code § 913 predicate compliance based on Defendant's inability to conclusively identify the City employee who rejected the claim or directed issuance of the May 12, 2022, notice; or to identify a decisionmaker or to identify any City Council resolution or written delegation to Risk Management.

These unresolved facts determine whether the six-month provision under Government Code § 945.6(a)(1) was triggered by a Government Code § 913-compliant notice or whether the two-year period under § 945.6(a)(2) applies, making them outcome-determinative and precluding summary adjudication on Defendant's Statute of Limitations defense. Code of Civil Procedure § 437c; *Aguilar v Atlantic Richfield Co.* (2001) 25 Cal.4th 826.

Accordingly, Defendant's Motion for Summary Judgment is denied.